

Here, Plaintiff filed the FAC without leave of the Court after Defendants had answered the initial complaint. As such, it was not filed in conformity with the Rules of Procedure and is subject to striking under Code of Civil Procedure section 436(b). See *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 (“This provision is commonly invoked to challenge pleadings filed in violation of a ... requirement of prior leave of court.”)

Plaintiff has not opposed the motion and has made no showing that she had authority to file the FAC. The Court is aware that during the meet and confer process Plaintiff suggested the FAC filed on November 21, 2025 “was submitted pursuant to...judicial authorization” permitted to correct the defect of being unverified. Chaffin Decl., Exh. A, pg. 2. In the court’s November 14, 2025 order denying Plaintiff’s request for preliminary injunction, the court held, “[t]he verified complaint, in fact, does not include a verification; it is not considered as evidence.... To the extent that Plaintiff seeks other relief, she must file and notice an appropriate motion for the same.” Nov. 14, 2025 Order, 2:5-10. That order did not, in any way, authorize Plaintiff to file a FAC after Defendant filed an answer.

Defendants’ motion to strike is granted.

8. CU22-086174 Michael Robert Pasner vs. Song Kowbel

Judge Tice-Raskin issued a tentative ruling prior to the February 6, 2026 hearing. It is restated here.

Petitioner Michael Pasner’s motion for attorneys’ fees and costs is granted.

Code of Civil Procedure section 527.6(s) provides, “The prevailing party in an action brought pursuant to this section [for a civil harassment order] may be awarded court costs and attorney’s fees, if any.” “The recovery of attorney fees under subdivision (s) of section 527.6 is committed to the trial court’s discretion. ... The Legislature’s use of the word “may” plainly indicates the issues of *whether to award any fees and, if awarded, the amount recovered* are committed to the trial court’s discretion. *Wash v. Banda-Wash* (2025) 108 Cal.App.5th 561, 568 (italics added), *citing Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802.

Courts utilize Code of Civil Procedure section 1032 as guidance for determining who is the prevailing party for purposes of section 527.6. *Elster v. Friedman* (1989) 211 Cal. App. 3d 1439, 1443.

Code of Civil Procedure section 1032 . . . states in part: "(a) ... (4) 'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. *When any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court*

Ibid. (italics added).

In the case at bar, there is no dispute Petitioner is the prevailing party. Respondent requested to renew the restraining order against Petitioner which request was denied after a full evidentiary hearing on October 24, 2024. As prevailing party, Petitioner now moves for an order of attorney's fees and costs. He notes that the fees were necessarily incurred and further notes that he is an individual of limited means, *i.e.*, monthly income of \$2,418.00. In opposition, Respondent does not challenge the amount of fees requested, the hourly rate, or the number of hours spent by Petitioner's counsel. Rather, Respondent asserts she has limited monthly income of \$1,381.00. She argues that that fees must be reasonable and proportionate to the circumstances of the case and financial condition of the parties, and, in determining reasonableness, the Court should consider the financial hardship such an award would impose on her.

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court [Citations.] The value of legal services performed in a case is a matter in which the trial court has its own expertise. [Citation.] The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. [Citations.] The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.”

PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096 (quotations omitted).

At bar, in the exercise of its discretion and based on the totality of the circumstances (including the parties' reported respective financial conditions), the Court awards reasonable attorney's fees to Petitioner in the aggregate amount of \$5,250.00 (the equivalent of 15 hours of work at a rate of \$350/hour.)